

25STCV20103 25STCV20103

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 25STCV20103 Hearing Date: July 1, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 1, 2026

Case Name: Marmarian, et al. v. Ford Motor Company, et al.

Case No.: 25STCV20103

Matter: Motion for Judgment on the pleadings

Moving Party: Defendant General Motors LLC

Responding Party: Unopposed

Notice: OK

Ruling: The Motion is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a lemon law action.

Defendants Ford Motor Company and Envision Ford Lincoln of Duarte bring a Motion for Judgment on the Pleadings as to Plaintiffs' fraud claim.

When considering demurrers, courts read the allegations liberally and in context, and "treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) It is error "to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (Aubry v. Tri-City Hospital Dist., (1992) 2 Cal.4th 962, 967.)

"The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]" (Graham v. Bank of America, N.A. (2014) 226 Cal.App.4th 594, 606.)

There are "four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts." (Heliotis v. Schuman (1986) 181 Cal. App. 3d 646, 651.)

There is a transactional relationship to the extent that Defendant issued a warranty. (Dhital v. Nissan N. Am., Inc. (2022) 84 Cal.App.5th 828, 843-44)

Further, Plaintiff adequately pleads a duty to disclose by indicating Defendants' exclusive knowledge of the subject defect. (See, e.g., Compl. ¶25.)

Also, Plaintiff's claim is sufficiently pleaded to the extent specificity is somewhat relaxed for concealment claims. (See Alfaro v. Community Housing Imp. System & Planning Ass'n., Inc. (2009) 171 Cal.App.4th 1356, 1384.)

Lastly, the economic loss rule does not apply to the concealment claim. (See Dhital v. Nissan N. Am., Inc. (2022) 84 Cal.App.5th 828 ["[U]nder California law, the economic loss rule does not bar plaintiffs' fraudulent inducement claim."].)

In sum, the Motion for Judgment on the Pleadings is denied.

Moving party to give notice.